

PASSED

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 27-010

**Amendments to Title 2, Chapter 10 Section 2-1003 of the Chickasaw Nation Code
(Compensation)**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules regarding the rate of pay for certain members of boards, commissions and authorities, and

WHEREAS, the Tribal Legislature desires to amend those rules.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 2, Chapter 10 Section 2-1003 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

“SECTION 2-1003 COMPENSATION.

A. Each member of an official board, commission or agency of the Chickasaw Nation to which the provisions of this Article shall apply as contained and defined in Section 2-1000 ~~[sic] [2-1001]~~, **2-1001** shall be eligible for compensation in the form of per diem and travel expenses as are normally allowed for regular, full-time employees of the Chickasaw Nation.

C. Members of boards, commissions and agencies which are, as a course of their normal duties and/or functions, involved in meetings or tasks which last longer than four (4) consecutive hours, allowing for normal breaks for meals or other purposes, are entitled to compensation for their time at the rate of ~~ten~~ **fifteen** dollars ~~(\$10)~~ **(\$15)** per hour, in addition to any compensation which might be received in the form of per diem and travel expenses. The administrative staff assigned to each such board, agency or commission shall be responsible for completion of paperwork for such compensation in accordance with the normal procedures used for regular, full-time tribal employees. Should no such staff be assigned to such board, agency or commission, the Office of the Governor shall provide such services for those affected members.

~~————— D. ——— All persons subject to the provisions of Section 2-1000 [sic] [2-1001] as of August 1, 1996, shall be compensated in accordance with Section 2-1003 which shall be retroactive to August 1, 1996.”~~

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on July 16, 2010, by a vote of 12 ayes, 0 nays, and 0 abstentions.

Holly Easterling
Chairperson
Chickasaw Tribal Legislature

Linda Biggs
Secretary
Chickasaw Tribal Legislature

Concur: Bill Anoatubby
Bill Anoatubby, Governor
The Chickasaw Nation

Date: 7-16-10

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Permanent Resolution Number 27-010

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(Compensation)**

Explanation: This resolution amends Section 2-1003 of the Chickasaw Code to increase the amount of compensation due to certain members of boards, commissions and authorities from ten dollars (\$10.00) per hour to fifteen dollars (\$15.00) per hour when the time required to perform the meetings or tasks of such members exceeds four (4) consecutive hours. The amendments also correct inaccurate citations and delete unnecessary language.

Presented by: Finance Committee